

MOTION TO STRIKE PLEA OR VERDICT, DISMISS CHARGE, AND SEAL CASE

MISSOULA MUNICIPAL COURT

County: Missoula, Montana

STATE OF MONTANA, Plaintiff, v. Maria-Alejandra Isabel O'Shaughnessy-Whitfield, Defendant

Existing criminal case: CR-2020-000009876

Defendant contact: Maria-Alejandra Isabel O'Shaughnessy-Whitfield; 1188 Upper Tallapoosa Crossing Road, Apartment 14B, Missoula, MT 59801; (406) 555-0199; maria.oshaughnessy.whitfield@example.org

Defendant moves under MCA 46-18-204 in this existing criminal case. The following are facts supplied and to be verified by Defendant, not findings made by this packet.

The charge is Criminal mischief involving property (misdemeanor).

Defendant entered a plea of nolo contendere.

On 01/02/2020, the court deferred imposition of sentence; the sentence was not suspended.

The period of deferral has expired. Defendant complied with all conditions, including applicable fines and fees. Defendant contacted the sentencing court clerk, checked the deferred sentence order and confirmed from the case record that no petition to revoke under MCA 46-18-203 was filed during the deferral period. These allegations are based on Defendant's confirmed facts.

MISDEMEANOR BASIS: Defendant requests the court exercise its discretion under MCA 46-18-204 to strike the plea or verdict and dismiss the charge after completed deferral. Relief is not represented as automatic.

Defendant requests: strike the plea; dismiss the named charge; direct the clerk to seal this case; classify records and data as confidential criminal justice information under MCA 44-5-103, with public access only by district court order upon good cause shown; and send a copy to the prosecuting agency. Defendant will provide a copy of the dismissal order to the Department of Justice as required by MCA 46-18-204(2).

This motion does not request early termination under MCA 46-18-208. It concerns completed deferral.

I declare under penalty of perjury under the laws of the State of Montana that the factual statements I supply above are true and correct.

Defendant signature: _____

Date signed: _____

City and state where signed: _____

CERTIFICATE OF SERVICE

MISSOULA MUNICIPAL COURT

County: Missoula, Montana

STATE OF MONTANA, Plaintiff, v. Maria-Alejandra Isabel O'Shaughnessy-Whitfield, Defendant

Existing criminal case: CR-2020-000009876

Recipient: Missoula City Attorney

Mailing address: 900 Example Municipal Plaza, Suite 400, Missoula, MT 59801

Office email for identification: city.attorney@example.org

I certify that, AFTER filing, I served a true copy of the file-stamped motion in the above existing criminal case on the prosecuting office identified above. Complete the actual service details only after service has occurred.

Actual service date: _____

Method: mail or hand delivery: _____

Printed name of actual server: _____

Server signature: _____

The email identifies the office; it does not independently authorize email service. Confirm court-specific service procedure with the clerk. Printed name of actual server must be supplied before the service certificate is filed.

PROPOSED ORDER

MISSOULA MUNICIPAL COURT

County: Missoula, Montana

STATE OF MONTANA, Plaintiff, v. Maria-Alejandra Isabel O'Shaughnessy-Whitfield, Defendant

Existing criminal case: CR-2020-000009876

Matter: Criminal mischief involving property (misdemeanor), sentencing date 01/02/2020.

FOR THE COURT: findings and judicial execution below are reserved for the presiding judge.

Court finding of good cause under MCA 46-18-204: _____

Court determination of completed deferral and applicable statutory conditions:

Upon the court's findings of good cause and satisfaction of the applicable statutory conditions, IT IS ORDERED:

1. The plea in this case is stricken.
2. The charge of Criminal mischief involving property is dismissed.
3. The clerk shall seal the case.
4. All records and data are classified as confidential criminal justice information under MCA 44-5-103. Public access is permitted only by district court order upon good cause shown.
5. A copy of this order shall be sent to the prosecuting agency: Missoula City Attorney.
6. The Defendant is responsible for providing a copy of this dismissal order to the Montana Department of Justice under MCA 46-18-204(2).

Order date: _____

Presiding judge signature: _____

**STATE OF MONTANA
DEPARTMENT OF JUSTICE
DIVISION OF CRIMINAL INVESTIGATION
Criminal Records & Identification Services Section**



Expungement/Removal Request Form

PLEASE CHOOSE APPROPRIATE REQUEST TYPE:

☐ **Misdemeanor Conviction Expungement-** (One Time Privilege)- Per MCA Title 46, Chapter 18, Part 11.
SUBMISSION MUST INCLUDE: • **FD-258 Blue Applicant Fingerprint Card** • **Original Court Judgement**
• **District Court Order of the Expungement**

☐ **Marijuana Conviction Expungement-** MCA Title 16, Chapter 12, Part 1.
SUBMISSION MUST INCLUDE: • **Original Court Judgment** • **Court Order of the Expungement**

☐ **Non-Conviction Removal-** MCA Title 44, Chapter 5, Part 2.
SUBMISSION MUST INCLUDE: • **Court Judgment**

☒ **Deferred Imposition/Prosecution: Dismissed** – Criminal Justice Record Sealing
SUBMISSION MUST INCLUDE: • **Original Court Judgment** • **Court Order Dismissing Deferred Imposition/Prosecutions**

I, (print legibly) Maria-Alejandra Isabel O'Shaughnessy-Whitfield respectfully request an Expungement
of a Conviction/Removal of an arrest, that occurred on (date of arrest/fingerprinted) 10/22/2019.

I was charged and fingerprinted for [(list charge(s)):
Criminal mischief involving property

Date of Birth: 12/31/1968 Last 4-digits of Social Security Number(optional): _____

Return Address: 1188 Upper Tallapoosa Crossing Road, Apartment 14B
Missoula, MT 59801

Phone Number: (406) 555-0199

E-mail: maria.oshaughnessy.whitfield@example.org

Signature: _____

Date: _____

Mail Requests to CRISS Expungement,
2225 11th Ave. PO Box 201403, Helena, MT 59620
For Questions Call: 406-444-3625
CRISS will provide a confirmation letter once request is processed.

**STATE OF MONTANA
DEPARTMENT OF JUSTICE
DIVISION OF CRIMINAL INVESTIGATION
Crime Information Bureau**

Allow 30 Days For Processing

PARTICIPANT INSTRUCTIONS AND SEQUENTIAL CHECKLIST

BEFORE GENERATION: any noncitizen participant must stop for immigration advice. Dismissal after deferred imposition may still be a conviction for immigration purposes. This route describes sealing and confidential criminal justice information only. Do not assume the charge may be denied.

CONTACT THE SENTENCING COURT CLERK FIRST. Ask: What is your process for a motion under MCA 46-18-204? Do you require a local form, cover sheet, or addendum? Has my case already been dismissed and sealed on the court's own motion? A current local procedure or form overrides this drafted motion. Stop if one applies; do not file a duplicate motion if relief already occurred.

Obtain the deferred sentence order and confirm the existing criminal case number, sentencing court, sentencing date, crime and classification, plea or verdict, deferral period and completion. Deferred imposition is different from a suspended sentence; a suspended sentence does not qualify for this packet.

Ask the clerk to confirm from the case record whether the prosecutor filed any petition to revoke during deferral under MCA 46-18-203. Do not assert absence without that confirmation. A filed petition defeats the mandatory felony limb and requires legal review even on a misdemeanor. Verify all conditions, including fines and fees, were completed. Obtain compliance records if asked; disputes require a stop.

For a qualifying completed felony with no revocation petition, MCA 46-18-204(1)(a) uses shall; misdemeanor relief remains discretionary. This packet is for completed deferral only. Early termination under MCA 46-18-208 requires separate review, not an assumed expired period.

Review all motion facts; sign the declaration under penalty of perjury under Montana law, giving the actual date and city/state. No notarization is required for that declaration. Do not fill the judge's findings, order date or signature.

FILE FIRST, THEN SERVE. File the motion, certificate of service and proposed order with the clerk of the sentencing court in the SAME existing criminal case. Ask how the clerk wants the certificate handled before service is completed; do not sign a false certificate. Serve the file-stamped motion by mail or hand delivery on the county attorney or city attorney who prosecuted the case. Record actual method, recipient, date and server signature after service. Court and prosecutor responses/hearings are not assumed or assigned invented deadlines.

No new civil case is commenced. No motion fee is expected, but whether a local court charges a motion fee remains unresolved: ask the clerk; this packet quotes no court fee. The adopted instructions state no fee for the CRISS request.

AFTER THE COURT ORDER: obtain the signed dismissal order. The defendant is responsible for a SEPARATE DOJ CRISS submission; court sealing alone does not complete the DOJ record update. Use the retained 2024 CRISS Expungement/Removal Request Form, deferred-imposition request type only. Enclose the deferred sentence order and dismissal order; request certified judgment copies and include valid photo identification by default under the adopted fail-closed attachment treatment. Do not select misdemeanor expungement, marijuana expungement, or non-conviction removal.

CRISS mailing destination from the held form: CRISS Expungement, 2225 11th Ave., PO Box 201403, Helena, MT 59620. Questions: 406-444-3625. The form says to allow 30 days for processing and that CRISS supplies a confirmation letter. Preserve mailing proof, copies and the response.

VERIFY BOTH SYSTEMS: after the order and DOJ processing, check both Montana Public Access Portals and obtain a fresh CRISS criminal history record. Verify the case is sealed and treated as confidential criminal justice information; if it remains public or the DOJ charge remains, contact the relevant clerk/CRISS and obtain legal help as needed. Sealing is not destruction or a promise about permission to deny a charge.

SELF-HELP STOPS: A petition to revoke was filed, which defeats the felony limb and complicates the misdemeanor limb. The sentence was suspended rather than deferred. The participant is seeking early termination rather than post-completion dismissal. Any dispute about whether the conditions were completed or the deferral period expired. The clerk reports a court-specific procedure or a different local form. Any noncitizen participant. A dismissal after deferred imposition may still be a conviction for immigration purposes, and this is a hard stop. Any question about whether the participant may now deny the charge.

REVIEW ARTIFACT LIMIT: these fixtures contain synthetic facts and example contact details. The court documents and instructions are drafted, and the required DOJ source-derived form is supplied separately for use only after the court order. Do not file these synthetic review fixtures.

Required completion before service certificate filing: Printed name of actual server. The server is not assumed to be the defendant.

RELEASE NOTES RETAINED: local procedure/fee, DOJ 2023-versus-2024 attachment practice, supporting-process asset-role mismatch, and denial-of-charge legal effect remain the adopted release blockers. No source-index reclassification or commercial authority is created.

SYNTHETIC INTAKE FACTS FOR AUTHOR REVIEW

fullName: Maria-Alejandra Isabel O'Shaughnessy-Whitfield

dateOfBirth: 12/31/1968

mailingAddress: 1188 Upper Tallapoosa Crossing Road, Apartment 14B, Missoula, MT 59801

sentencingCourtLevel: municipal_city

sentencingCounty: Missoula

caseNumber: CR-2020-000009876

chargeName: Criminal mischief involving property

pleaOrVerdict: nolo contendere

sentencingDate: 01/02/2020

deferredNotSuspended: true

deferralPeriodExpired: true

conditionsCompleted: true

revocationPetitionFiled: false

clerkContacted: true

prosecutingOffice: Missoula City Attorney

DOJ facts reserved for required source-derived form: date of birth 12/31/1968; arrest/fingerprint date 10/22/2019; charge Criminal mischief involving property; phone (406) 555-0199; email maria.oshaughnessy.whitfield@example.org.

PARTICIPANT INSTRUCTIONS - RETAINED AGENCY ACCESS

This record is sealed and treated as confidential criminal justice information. Agencies listed in MCA 44-5-103 retain access to the sealed record in its entirety. DOJ specifically identifies law enforcement, including the military and Border Patrol. Sealing does not destroy or erase the record and does not establish permission to deny the charge.